

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
LOGAN AYALA,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER "JOHN
DOE", BADGE NUMBER 17816, AND SEVERAL
UNIDENTIFIED POLICE OFFICERS ASSIGNED
TO THE 103RD PRECINCT,

Defendants.
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Index No.:

Date Purchased:

Plaintiff designates Queens
County as the place of trial.

Basis of venue is
place of occurrence.

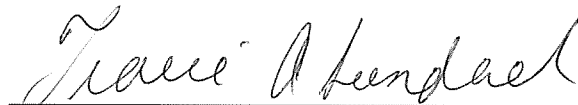
SUMMONS

Plaintiff resides at
3440 North Goldenrod Road
Apartment No. 1027
Winter Park, Florida 32792

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, New York
May 14, 2014



TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorney for Plaintiff
LOGAN AYALA
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

Defendant's address:

CITY OF NEW YORK
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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LOGAN AYALA,

Plaintiff,

Index No.:

-against-

CITY OF NEW YORK, POLICE OFFICER “JOHN
DOE”, BADGE NUMBER 17816, AND SEVERAL
UNIDENTIFIED POLICE OFFICERS ASSIGNED
TO THE 103RD PRECINCT,

VERIFIED COMPLAINT

Defendants.

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Plaintiff LOGAN AYALA by and through his attorneys, TRACIE A. SUNDACK &
ASSOCIATES, L.L.C., complaining of Defendants CITY OF NEW YORK, POLICE OFFICER
“JOHN DOE”, BADGE NUMBER 17816, and SEVERAL UNIDENTIFIED POLICE
OFFICERS ASSIGNED TO THE 103RD PRECINCT, respectfully alleges as follows:

1. That at all times hereinafter mentioned Defendant CITY OF NEW YORK was and still
is a municipal corporation duly organized and existing under and by virtue of the General
Municipal Law of the State of New York.

2. That at all times hereinafter mentioned Defendant CITY OF NEW YORK, its agents,
servants and/or employees operated, maintained and controlled the New York City Police
Department, including all the police officers thereof.

3. That at all times hereinafter mentioned Defendant POLICE OFFICER “JOHN DOE”,
BADGE NUMBER 17816, was employed by Defendant CITY OF NEW YORK as a police
officer.

4. That at all times hereinafter mentioned Defendant POLICE OFFICER “JOHN DOE”,
BADGE NUMBER 17816, acted within the scope of his employment for Defendant CITY OF
NEW YORK.

5. That at all times hereinafter mentioned, Defendant POLICE OFFICER “JOHN DOE”,
BADGE NUMBER 17816, was acting under the color and pretense of the statutes, ordinances,
regulations, customs, and usages of the County of Queens, City and State of New York, and

under the authority of his office as a police officers for said county, city and state.

6. That at all times hereinafter mentioned Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT were employed by Defendant CITY OF NEW YORK as police officers.

7. That at all times hereinafter mentioned Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT acted within the scope of their employment for Defendant CITY OF NEW YORK.

8. That at all times hereinafter mentioned, Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, were acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the County of Queens, City and State of New York, and under the authority of their office as police officers for said city and county.

9. That on March 17, 2013, Plaintiff LOGAN AYALA was lawfully in front of 162-17 Jamaica Avenue in the County of Queens, City and State of New York, when he was accosted by members of the New York City Police Department including Defendants POLICE OFFICER “JOHN DOE”, BADGE NUMBER 17816, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT.

10. That, at the aforementioned time and place, Defendants POLICE OFFICER “JOHN DOE”, BADGE NUMBER 17816, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, handcuffed Plaintiff LOGAN AYALA and placed him under arrest, despite Defendants’ knowledge that they lacked reasonable grounds or probable cause to do so.

11. That at the aforementioned time and place, Defendants POLICE OFFICER “JOHN DOE”, BADGE NUMBER 17816, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, without any just cause or provocation, willfully, wantonly, maliciously, and recklessly assaulted, attacked and verbally abused Plaintiff LOGAN AYALA.

12. That, as a result of this unprovoked assault, Plaintiff LOGAN AYALA sustained injuries to, *inter alia*, his arms and wrists.

13. That Plaintiff LOGAN AYALA was transported to the 103RD Precinct (168-02 P.O. Edward Byrne Avenue, Queens, New York 11432) of the New York City Police Department, and then to Queens Central Booking where his arrest was processed.

14. That, upon information and belief, Plaintiff LOGAN AYALA was held, detained and imprisoned from March 17, 2013, to March 19, 2013, by Defendants before being released.

15. That, upon information and belief, all charges against Plaintiff LOGAN AYALA were dismissed.

16. That on or about April 19, 2013, within 90 days of the happening of the accident, but more than 30 days prior to the commencement of this action, Plaintiff LOGAN AYALA duly presented, served, and filed a Notice of Claim, in writing, upon Comptroller of Defendant CITY OF NEW YORK, setting forth the name and post office address of claimant and his attorneys; the nature of the claim, the time when, the place where, and the manner in which the claim arose.

17. That more than 30 days have elapsed since service of said Notice of Claim and payment or adjustment thereof has been neglected or refused on behalf of Defendants CITY OF NEW YORK, POLICE OFFICER "JOHN DOE", BADGE NUMBER 17816, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT.

18. Upon information and belief, Defendant CITY OF NEW YORK has waived its right to a municipal hearing regarding the claims of Plaintiff LOGAN AYALA.

19. This action is commenced within one year and ninety days after the cause of action arose.

AS AND FOR A FIRST CAUSE OF ACTION FOR FALSE ARREST
PURSUANT TO 42 U.S.C. § 1983

20. Plaintiff LOGAN AYALA repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

21. Plaintiff LOGAN AYALA had not committed any offense and Defendant CITY OF NEW YORK, its agents, servants, and/or employees including, but not limited to, Defendants

POLICE OFFICER “JOHN DOE”, BADGE NUMBER 17816, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT did not have reasonable grounds or probable cause to believe that Plaintiff LOGAN AYALA had committed any offense.

22. Defendant CITY OF NEW YORK, its agents, servants, and/or employees including, but not limited to, Defendants POLICE OFFICER “JOHN DOE”, BADGE NUMBER 17816, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT were aware that probable cause did not exist for the arrest and detention of Plaintiff LOGAN AYALA and that said arrest and detention was illegal, without justification or excuse, and without authority of law.

23. Upon information and belief. in all of the wrongful acts above alleged, Defendant CITY OF NEW YORK, its agents, servants, and/or employees including, but not limited to, Defendants POLICE OFFICER “JOHN DOE”, BADGE NUMBER 17816, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, acted without reasonable or probable cause and with malicious intent to arrest, oppress, and injure Plaintiff LOGAN AYALA and such actions were committed in bad faith.

24. As a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICER “JOHN DOE”, BADGE NUMBER 17816, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, all committed under color of their authority as police officers, and while acting in that capacity, Plaintiff LOGAN AYALA suffered damage, all of which is in violation of his rights under the laws and Constitution of the United States, in particular the First, Fourth, Fifth, Eighth and Fourteenth Amendments thereof, and 42 U.S.C. §§ 1981, 1983, and 1985 (2) and (3).

25. As a further result of the above-described acts, Plaintiff LOGAN AYALA was deprived of the rights and immunities secured to him under the Constitution and laws of the United States and of the State of New York.

26. As a proximate result of the actions of Defendant CITY OF NEW YORK, its agents, servants, and/or employees including, but not limited to, Defendants POLICE OFFICER “JOHN

DOE”, BADGE NUMBER 17816, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, Plaintiff LOGAN AYALA’s liberty was restricted for an extended period of time, he was put in fear for his safety, he was humiliated and subjected to confinement, without probable cause.

**AS AND FOR A SECOND CAUSE OF ACTION FOR FALSE IMPRISONMENT
PURSUANT TO 42 U.S.C. § 1983**

27. Plaintiff LOGAN AYALA repeats, reiterates, and realleges each and every paragraph of this complaint and further allege:

28. Plaintiff LOGAN AYALA was falsely imprisoned from March 17, 2013 to March 19, 2013, by Defendant CITY OF NEW YORK, its agents, servants, and/or employees, including but not limited to Defendants POLICE OFFICER “JOHN DOE”, BADGE NUMBER 17816, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, who procured and /or effected said false imprisonment knowing their actions to be wrongful and malicious and without any basis.

29. Defendant CITY OF NEW YORK by and through its agents, servants, and/or employees, including but not limited to Defendants POLICE OFFICER “JOHN DOE”, BADGE NUMBER 17816, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, intended to confine Plaintiff LOGAN AYALA and Plaintiff was conscious of the confinement and did not consent to the confinement.

30. Defendants’ words, actions, and the charges laid by them were willful, malicious, false, wrongful, without reason or basis and without probable cause and committed in bad faith and solely for the purpose of falsely imprisoning Plaintiff LOGAN AYALA and damaging Plaintiff LOGAN AYALA in his reputation and depriving him of his liberty.

31. As a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICER “JOHN DOE”, BADGE NUMBER 17816, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT all committed under color of their authority as police officers of Defendant CITY OF NEW YORK, and while acting in that capacity, Plaintiff LOGAN AYALA suffered damage, all of which is in

violation of his rights under the Constitution and laws of the United States and of the State of New York.

AS AND FOR A THIRD CAUSE OF ACTION FOR MUNICIPAL LIABILITY

32. Plaintiff LOGAN AYALA repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

33. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

34. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to, making unlawful arrests in order to satisfy an arrest quota.

35. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well- being and constitutional rights of Plaintiff LOGAN AYALA.

36. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff LOGAN AYALA as alleged herein.

37. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiff LOGAN AYALA as alleged herein.

38. Defendants, collectively and individually, while acting under the color of state law, were directly and actively involved in violating Plaintiff LOGAN AYALA's constitutional rights.

39. All of the foregoing acts by defendants deprived Plaintiff LOGAN AYALA of federally protected rights including, but not limited to, the right:

- A. Not to be deprived of liberty without due process;
- B. To be free from seizure and arrest not based on probable cause;
- C. To be free from unwarranted and malicious criminal prosecution;

- D. To be free from malicious abuse of process;
- E. Not to have cruel and unusual punishment imposed upon him;
- F. To receive equal protection under the law.

AS AND FOR A FOURTH CAUSE OF ACTION FOR FAILURE TO INTERVENE

40. Plaintiff LOGAN AYALA repeats, reiterates and realleges each and every allegation contained in this complaint.

41. Each and every individual Defendant Police Officer had an affirmative duty to intervene on Plaintiff LOGAN AYALA's behalf to prevent the violation of his constitutional rights and failed to so intervene despite having had a realistic opportunity to do so.

42. As a result of the aforementioned conduct of the individual Defendant Police Officers, Plaintiff LOGAN AYALA's constitutional rights were violated and he was subjected to excessive force and sustained physical injuries.

**AS AND FOR A FIFTH CAUSE OF ACTION
UNDER NEW YORK STATE LAW FOR FALSE ARREST**

43. Plaintiff LOGAN AYALA repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

44. Defendants POLICE OFFICER "JOHN DOE", BADGE NUMBER 17816, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT arrested Plaintiff LOGAN AYALA in the absence of probable cause and without a warrant.

45. As a result of the aforesaid conduct by Defendants POLICE OFFICER "JOHN DOE", BADGE NUMBER 17816, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, Plaintiff LOGAN AYALA was subjected to an illegal, improper and false arrest by the Defendants and taken into custody and cause to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the defendants in criminal proceedings.

46. The aforesaid actions by the Defendants constituted a deprivation of Plaintiff LOGAN AYALA's rights.

**AS AND FOR A SIXTH CAUSE OF ACTION UNDER
NEW YORK STATE LAW FOR FALSE IMPRISONMENT**

47. Plaintiff LOGAN AYALA repeats, reiterates, and realleges each and every paragraph of this complaint and further allege:

48. As a result of the foregoing, Plaintiff LOGAN AYALA was falsely imprisoned, his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints.

49. Plaintiff LOGAN AYALA was conscious of said confinement and did not consent to same.

50. The confinement of Plaintiff LOGAN AYALA was without probable cause and was not otherwise privileged.

51. As a result of the aforementioned conduct, Plaintiff LOGAN AYALA has suffered physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

**AS AND FOR A SEVENTH CAUSE OF ACTION UNDER
NEW YORK STATE LAW FOR NEGLIGENT HIRING AND RETENTION**

52. Plaintiff LOGAN AYALA repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

53. That Defendant CITY OF NEW YORK, was careless and reckless in hiring and retaining as and for its employees, Defendants POLICE OFFICER "JOHN DOE", BADGE NUMBER 17816, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT in that said defendant employees lacked the experience, deportment and ability to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK failed to exercise due care and caution in its hiring practices, and in particular, in hiring the defendant employees who lacked the mental capacity and the ability to function as employees of Defendant CITY OF NEW YORK; in that the defendant employees lacked the maturity, sensibility and intelligence to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK knew of the lack of ability, experience, deportment and

maturity of said defendant employees when they hired them to be employees; and, in that Defendant CITY OF NEW YORK, its agents, servants and/or employees were otherwise careless, negligent and reckless.

54. Defendant CITY OF NEW YORK knew, or should have known in the exercise of reasonable care, the propensities of the Defendants POLICE OFFICER “JOHN DOE”, BADGE NUMBER 17816, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT to engage in the wrongful conduct heretofore alleged in this Complaint.

**AS AND FOR A EIGHTH CAUSE OF ACTION UNDER
NEW YORK STATE LAW FOR NEGLIGENT TRAINING AND SUPERVISION**

55. Plaintiff LOGAN AYALA repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

56. The failure of Defendant CITY OF NEW YORK to adequately train, supervise, discipline or in any way control the behavior of Defendants POLICE OFFICER “JOHN DOE”, BADGE NUMBER 17816, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, in the exercise of their employment functions, and their failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK, is evidence of the reckless lack of cautious regard for the rights of the public including Plaintiff LOGAN AYALA. Further, the Defendants exhibited a lack of that degree of due care which prudent and reasonable individuals would show.

57. The failure of Defendant CITY OF NEW YORK to train, supervise, discipline or in any other way control Defendants POLICE OFFICER “JOHN DOE”, BADGE NUMBER 17816, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT in the exercise of their employment functions and their failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK, was carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to the citizens of New York, including Plaintiff LOGAN AYALA.

**AS AND FOR A NINTH CAUSE OF ACTION FOR
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983**

58. Plaintiff LOGAN AYALA repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

59. The level of force employed by Defendants POLICE OFFICER “JOHN DOE”, BADGE NUMBER 17816, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT , was objectively unreasonable, and in violation of Plaintiff LOGAN AYALA’s constitutional rights.

60. As a result of the aforementioned conduct of Defendants POLICE OFFICER “JOHN DOE”, BADGE NUMBER 17816, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT , Plaintiff LOGAN AYALA was subjected to excessive force and sustained physical injuries.

**AS AND FOR A TENTH CAUSE OF ACTION FOR
ASSAULT UNDER NEW YORK STATE LAW**

61. Plaintiff LOGAN AYALA repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

62. The aforementioned acts of Defendants POLICE OFFICER “JOHN DOE”, BADGE NUMBER 17816, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, placed Plaintiff LOGAN AYALA in apprehension of imminent harmful and offensive bodily contact.

63. As a result of the conduct of Defendants POLICE OFFICER “JOHN DOE”, BADGE NUMBER 17816, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, Plaintiff LOGAN AYALA has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

**AS AND FOR A ELEVENTH CAUSE OF ACTION
FOR BATTERY UNDER NEW YORK STATE LAW**

64. Plaintiff LOGAN AYALA repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

65. Defendants POLICE OFFICER “JOHN DOE”, BADGE NUMBER 17816, and

SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, touched Plaintiff LOGAN AYALA in a harmful and offensive manner.

66. Defendants POLICE OFFICER "JOHN DOE", BADGE NUMBER 17816, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, did so without privilege or consent from Plaintiff LOGAN AYALA.

67. As a result of the conduct of Defendants POLICE OFFICER "JOHN DOE", BADGE NUMBER 17816, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, Plaintiff LOGAN AYALA has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

68. As a result of the foregoing, Plaintiff LOGAN AYALA is entitled to compensatory damages in the sum of One Million Dollars (\$1,000,000.00) and is further entitled to punitive damages against the individual Defendants in the sum of Three Million Dollars (\$3,000,000.00)

WHEREFORE Plaintiff LOGAN AYALA demands judgment against Defendants CITY OF NEW YORK, POLICE OFFICER "JOHN DOE", BADGE NUMBER 17816, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, jointly and severally, in the amount of One Million Dollars (\$1,000,000.00) in compensatory damages and Three Million Dollars (\$3,000,000.00) in punitive damages, plus reasonable attorney's fees, costs and disbursements of this action.

Dated: White Plains, New York
May 14, 2014

A handwritten signature in cursive script, reading "Tracie A. Sundack", is written over a horizontal line.

TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiff
LOGAN AYALA
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
) SS.:
COUNTY OF WESTCHESTER)

I, the undersigned, an attorney admitted to practice in the Courts of the State of New York, state:

That I am the attorney of record for the Plaintiff in the within action.

That I have read the foregoing SUMMONS and COMPLAINT and know the contents thereof; the same is true to my own knowledge, except for the matters therein alleged to be on information and belief, and as to those matters I believe them to be true. The reason this Verification is made by me and not by the Plaintiff is that the Plaintiff resides outside the County where your affirmant maintains her office. The grounds of my belief as to all matters not stated upon my own knowledge are as follows: files maintained by my office and conversations with the Plaintiff.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: White Plains, New York
May 14, 2014



TRACIE A. SUNDACK